



United States Department of Agriculture
Forest Service
January 2025



Final Record of Decision

End of the World Project

Salmon River Ranger District
Nez Perce – Clearwater National Forests
Idaho County, Idaho



Responsible Official

The Forest Supervisor of the Nez Perce-Clearwater National Forests is the Responsible Official for deciding the type and extent of management activities in the End of the World project area.

HEATH PERRINE

Digitally signed by HEATH PERRINE
Date: 2025.01.06 11:43:16 -08'00'

HEATH PERRINE

Date

Acting Forest Supervisor,
Nez Perce-Clearwater National Forests

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**Final Record of Decision
End of the World Project
January 2025**

**Nez Perce-Clearwater National Forests
Salmon River Ranger District
Idaho County, Idaho**

Lead Agency: USDA Forest Service

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History

Following the June 2022 Case No. 3:21-cv-00189-CWD Memorandum and Decision Order, the Decision Notice (DN) and the Final Environmental Assessment (EA) for the End of the World project were remanded to the Forest for further evaluation under the National Forest Management Act (NFMA) and National Environmental Policy Act (NEPA) consistent with the decision.

I directed forest personnel to conduct additional review and analysis to address the Judge’s Order. In July 2024, the Draft Environmental Impact Statement for the End of the World Project was prepared to further evaluate old-growth and cumulative effects to old-growth under NFMA and NEPA, as directed by the court. The 2021 EA, FONSI, specialist reports for each resource, and other supporting documentation are incorporated into this EIS by reference. Potential impacts were analyzed in the 2021 EA for Silviculture, Economics, Invasive Species, Range, Watershed, Aquatics, Air, Fire and Fuels, Roads, Recreation, Soils, Threatened, Endangered, and Sensitive Plant Species, Snags, Heritage Resources, Visuals, and Eligible Wild and Scenic Rivers and found to be non-significant. Analysis and conclusion about the potential effects are available in the EA, FONSI, specialist reports for each resource, and other supporting documentation cited in those reports. Specialist reports are contained within the project file and on the project website.

Additional analysis for climate change, wolverine, and whitebark pine was provided due to changes in regulations since the EA was published was included in the EIS.

This Final Record of Decision considers the analysis contained in both the End of the World Final EA and FONSI (both have been incorporated by reference) and the Final EIS.

Introduction

This document presents my rationale and the actions to implement the End of the World project on the Salmon River Ranger District of the Nez Perce-Clearwater National Forests.

The approved activities will occur in the End of the World project area, located approximately six (6) miles south of Grangeville, Idaho. The project area encompasses approximately 49,565 acres, within the Salmon River Ranger District of the Nez Perce - Clearwater National Forests. The project lies entirely within territory ceded to the United States by the Nez Perce Tribe in 1855.

This project is in the heart of the Forests’ Wildland Fire Crisis Emergency Landscape. The project area is also entirely within WUI identified in the Idaho County Wildfire Protection Plan and was selected by the Governor of Idaho as a Priority Landscape Treatment Area under the Farm Bill (USDA-FS 2014/2016). The Governor’s Priority Landscape Treatment areas are those where forest health and fuel hazard conditions are outside of historic or desired conditions and are where private lands and structures are located.

The project area is fully located within the Nez Perce-Clearwater-Lower Salmon Priority Landscape (Firesheds and Lower Salmon Priority Landscape Map). Treatments are planned within two high risks firesheds. Approximately 28,253 acres of the project area are in the Asbestos fireshed which is the highest priority fireshed in the priority landscape, and 21,312 acres of the project area are within the White Bird fireshed which is the sixth highest priority within the Nez Perce-Clearwater-Lower

Salmon Priority Landscape. 81% of the Asbestos fireshed and 67% of the White Bird fireshed have been identified as “high” and “very high risk.”

The Secretary of Agriculture, Tom Vilsack, determined that the Forest Service may carry out Authorized Emergency Actions under section 40807 of the Infrastructure Investment and Jobs Act (PL 117-58) on National Forest System lands in 250 identified High Risk Firesheds. Emergency actions are taken to achieve relief from threats to public health and safety, critical infrastructure, and/or to mitigate threats to natural resources. Forests projects proposed under an emergency authority must be approved by the Secretary.

The Forest requested and received approval to implement the End of the World Project as an Emergency Action Determination project. The reason for requesting this emergency authority is to mitigate the harm to life, property, or important natural or cultural resources on NFS or adjacent land; harvest (commercial or non-commercial) to control insects or disease and remove hazardous fuels.

This action is needed, to maintain forest health and promote resilient ecosystems by managing towards more characteristic landscape level vegetation patterns, structure, patch size, fuel loading and species composition. Additionally, treatments are designed to create conditions that will moderate fire behavior such that fire fighters will have more options.

Based on observed existing conditions, as well as other supporting information (e.g. annual insect and disease aerial detection surveys, national insect and disease risk maps, community wildfire protection plan, and input from local community members), there is a need to:

- Reduce the risk or extent of, or increase resilience to, insect or disease infestation.
- Reduce wildfire risk to the local communities and surrounding federal lands.
- Restore forest vegetation, dry meadows, and grasslands to a healthy condition; and
- Improve water quality and aquatic habitats.

Opportunities exist in the project area to increase the resilience of the forest to insects, disease, fire, and climate change. To meet this need, the proposal includes timber harvesting, prescribed burning, permanent and temporary road construction, system road reconstruction, and watershed improvement activities. Alternative B (preferred alternative) includes 12 harvest units that create openings exceeding 40 acres in size.

In addition to the rationale discussion for this Record of Decision; all supporting data and analysis included in the Final EA and FONSI, and the Final EIS for the project, along with the response to comment document for the comment period; are hereby incorporated by reference. These documents are in the project record.

This Record of Decision is based on a review of the Final EIS and the Final EA and FONSI for the End of the World project, specialist reports, related scientific literature and the Nez Perce National Forest Land and Resource Management Plan (Forest Plan; USDA Forest Service 1987a, as amended). I considered public comments from individuals and groups and input from state and federal agencies. I also considered, and incorporated clarifications and adjustments to the project from coordination with Nez Perce Tribal staff regarding impacts to tribal trust assets and input from state and federal agencies and other interested parties. My staff has updated the project webpage throughout the planning effort.

I have considered the public comments received during the 30-day scoping/comment period in February of 2018 and comments on the Draft EIS in July/August of 2024. An Emergency Action Determination was approved on May 16, 2024 (under section 40807 of the Infrastructure Investment and Jobs Act (PL 117-58)); therefore, this project is not subject to the pre-decisional objection review process (36CFR 218 - objections).

On July 12, 2024, a Notice of Availability of the Draft EIS (USDA, Forest Service 2024) was published in the Federal Register (Federal Register, Vol. 89, No. 134, pg. 57151).

This Final Record of Decision for the End of the World project, and other project documents are available on the project website at: <https://www.fs.usda.gov/project/?project=52541> . These documents and other information from the project record are also available by request. The project record includes the Nez Perce Forest Plan, specialist reports, and other applicable guidance, data, and information.

The Final Record of Decision and Final EIS for the End of the World project comply with the National Environmental Policy Act (NEPA). All project activities were analyzed in the Final EIS and EA and FONSI to disclose the cumulative effects of the activities. I am basing my decision on these documents, with input from the interdisciplinary team and the public, to implement actions for the End of the World project.

Purpose and Need

Based on the court's ruling, an Environmental Impact Statement (EIS) focusing on old growth was prepared to comply with the court's remand order. The EIS provides updated information about the project's ability to meet Forest Plan standards for old growth in the project area and the cumulative effects on old growth between the End of the World and Hungry Ridge projects. Additional analysis for climate change, wolverine, and whitebark pine was provided in the EIS due to changes in regulations since the EA was published. Other resources were addressed by following 40 CFR 1502.2(b). The EIS builds on the End of the World Project EA and FONSI. Additional documentation, including the EA, FONSI, and more detailed analyses of project area resources is incorporated by reference and may be found in the project record.

The purpose of the End of the World project is to increase the resilience of the forest to insects, disease, and fire. This action is needed, to maintain forest health and promote resilient ecosystems by managing towards more characteristic landscape level vegetation patterns, structure, patch size, fuel loading and species composition. Additionally, treatments are designed to create conditions that will moderate fire behavior such that fire fighters will have more options. This action responds to the goals and objectives outlined in the Nez Perce Forest Plan and helps move the project area towards desired conditions described in that plan (Nez Perce Forest Plan, 1987).

This action is needed, to maintain forest health and promote resilient ecosystems by managing towards more characteristic landscape level vegetation patterns, structure, patch size, fuel loading and species composition. Additionally, treatments are designed to create conditions that will moderate fire behavior such that fire fighters will have more options.

Decision

I have decided to implement Alternative B. Based on my review of all alternatives, potential effects as analyzed in the Final EA, FONSI, Final EIS, resource specialist reports, and consideration of collaboration and public comments. Alternative B is displayed in Tables 1-3 (below). As described below, Alternative B, includes specific design elements (Table 4).

The acreages and mileages are approximate, based on a combination of field data and geospatial analysis. During layout and implementation, these acreages and mileages may be slightly adjusted to ensure compliance with Best Management Practices, and project design elements. In general, over 30 percent of acres are dropped during project layout when project design elements are implemented on the ground. My decision is based on the impacts of the magnitude of the treatments as presented in the Final EA, FONSI, and EIS. Impacts to resources may be less due to implementation changes or they may be in a slightly different location. The impacts from the action are within those that I considered in making this informed decision.

Table 1: Alternative B

Treatment Type	Quantity	Alternative B Acres
Potential Pre-Commercial Thinning		Total 1,098
Intermediate Harvest (Commercial Thin) ²		6,120
Intermediate Harvest (Variable Density Thin)		10,033
Intermediate Harvest (Overstory Removal)		194
Intermediate Harvest Total		Total 16,347
Regeneration Harvest (Clearcut with Reserves)		909
Regeneration Harvest (Shelterwood Harvest)		530
Regeneration Harvest (Seed Tree Harvest)		99
Regeneration Harvest Total		Total 1,528
<i>Over-40-acre Openings</i>	12 Units	<i>Range from 44 to 230 Acres</i>
Campground/Hazard Tree		51
Dry Meadow/ Range Maintenance		82
Fuels Reduction (Post Vegetation Treatment)		Up to 17,908
Natural Fuels Reduction (Prescribed Burning)		Total 6,783
Natural Fuels Reduction (Mechanical – Hand Thinning, Pile and Jackpot Burning)		357

¹ Intermediate harvest and pre-commercial thinning units have refined GIS boundaries and prescriptions, hence the difference in acres between the Proposed Action document and the EA document numbers.

² All intermediate harvest is analyzed the same and therefore commercial thinning units may be adjusted to variable density thinning during layout

Table 2: Alternative B Cont.

Treatment	Alternative B Miles¹	Alternative B Count
Road 221 Fuel Break	16	
Temporary Roads	15	

Road Reroute – New Construction	< 1	
Road #9469 Reconstruction	< 1	
Road Improvement • Install additional cross drain culverts • Harden stream crossings for cattle/ATVs		43 5
Road Decommissioning	28	
Culvert Replacements for Aquatic Organism Passage		5
Culvert Removals (Road Decommissioning)		18
Riparian Planting	< 1	
Limitation of Cattle Access by Strategic Tree Felling	< 1	

¹ All mileages are approximate and are rounded up to the closest whole numbers.

Table 3: Alternative B Cont.

Resource	Treatment – Alternative B
Invasive Species	• Consecutive targeted prescribe fires to reduce seedbed where native bunchgrass communities are not intact. • Additional bio-control releases in partnership with the Nez Perce Tribe bio-control center. • Aerial restoration efforts of invasive annual grass communities often produces poor results; therefore, aerial seeding both native grass/forb and introduced annual grasses that stay greener, longer may be utilized if an effective seedbed can be achieved by prescribed fire, and funding is secured. • If the Range Specialists are able to determine that aerial restoration of annual grasslands has an economically viable chance at success, then the following may be considered if available on the market: ○ Aerial application of US Environmental Protection Agency (EPA) classified bio-pesticides such as <i>Pseudomonas fluorescens</i> as a tool for the management of invasive annual grasses such as cheatgrass, medusahead, and ventanata. Presently, the only strain registered for use as a bio-pesticide in region 1 is sold under the trade name D7® by Verdesian Life Sciences and is not being commercially produced.
Range	Additional fencing within the project area is proposed (if needed) to restore forest vegetation, meadows and grassland OR to maintain or improve water quality and aquatic habitats

	Prescribed fire is proposed. Specific prescriptions are described in the Natural Fuels Reduction section of the Proposed Action.
Trails	Trail restoration or reconstruction, bridge repair, reconstruction, or replacement, culvert replacement; stream crossing hardening, installation of new water bars/dips, tread delineation, and possible tread base stabilization to adequately support the designed trail use and minimize soil displacement

All project activities include project design elements to avoid any irreversible or irretrievable commitment of resources. When on the ground layout of timber sales and prescribed burning begins (post NEPA planning), field personnel will ground truth, field verify, and apply all project design elements on each acre of land in the treatment areas. Finally, all project design elements will be implemented and monitored through contract administration. The practices in this decision are not new or unknown and effects are clearly understood.

Design Elements

Design elements (referred to as design features in the EA) are an integral component of Alternative B. Design elements were identified early in the NEPA process as part of developing the proposed action and acted as the sideboards for project development. Design elements are derived from Forest Plan Standards and Guidelines, and Forest Service Manual and Handbook policy and direction.

Additionally, design elements include mandatory contract provision requirements, Best Management Practices (BMPs), Idaho State Water Quality Standards, Idaho Forest Practices Act Rules, and similar laws, rules or policy. Design elements reiterate the things we are required to do to ensure our decision document is supported by an environmental analysis that is consistent with the Forest Plan and applicable laws and regulations. This decision is consistent with all applicable laws, policies, and regulations. For the End of the World Project, some (this is not an exhaustive list) of the design elements include:

- No activities are proposed within old growth (MA20).
- Moose Winter Range (MA21): No treatments will take place in designated MA21. Although not required, prescriptions conserving Pacific yew will be applied to stands harboring Pacific yew but which are not designated as MA21.
- Silvicultural prescriptions are designed to promote within-stand resilience (as described in the purpose and need), create a variety of patch sizes on the landscape, and provide species diversification.
- Regeneration harvest, intermediate harvest, and pre-commercial thinning will be utilized.
- Regeneration harvest units will be replanted at varying stocking levels depending on biophysical setting and silvicultural prescription.
- Replanted units will be surveyed to certify they are stocked within five years.
- Coarse woody debris and snags will be retained where safe to do so.
- Prescribed fire will be used after harvest, where feasible and necessary, to reduce activity fuels and provide site preparation for replanting.
- Harvest units are located to achieve the desired combination of multiple-use objectives. The units cut will be shaped and blended with the natural terrain, to the extent practicable, to achieve visual (aesthetic), wildlife habitat, or other objectives, while meeting the primary need for fuels reduction in the wildland urban interface.

- Treatments have been designed to protect and enhance the South Fork Clearwater River (eligible Wild and Scenic River).
- PACFISH Riparian Habitat Conservation Areas (RHCAs) will be adhered to in all units except the limited proposed treatments in RHCAs to address hazard trees in campgrounds and conifer encroachment in dry meadows.
- Dry meadow/range maintenance will consist of hand felling trees within the designated areas. Trees will generally be left on site unless they would increase the fuel hazard in the wildland urban interface.
- Prescribed fire will be evaluated as needed during the seasonal grazing plan development to determine if grazing restrictions are appropriate.
- Known historic (NRHP Eligible/historically significant) properties or sites will be avoided or protected during project implementation.
- Ground-disturbing activities will be halted if cultural resources are discovered until an Archaeologist can properly evaluate and document the resources in compliance with 36 CFR 800 (mandatory contract provision B6.24).
- Existing road prisms within units may be used for additional temporary roads if necessary. These road prisms are part of harvest units that were modeled with NEZSED. Existing road prisms that may be used will have no stream crossings; are located on stable, upper slopes; and there will be little/discontinuous cut and fill (excavation). These road prisms will be obliterated/recontoured within 3 years after use. (mandatory contract provisions B6.63, C6.632#, and C6.633#).

Additional Design Elements

Additional Design Elements (referred to as mitigation in the EA) address site-specific factors about the project that need protection over and above those already built into the design. For the End of the World Project, the following Additional Design Elements will be applied:

Table 4: End of the World Additional Design Elements

End of the World Project Additional Design Elements	
Soil Resources	
SR-1	Restrict activities when soils are wet to prevent resource damage (indicators include excessive rutting, soil displacement, and erosion).
SR-2	Limit ground-based skidding to slopes 45% or less (Idaho Forest Practices Act).
SR-3	Locate and design skid trails, landings and yarding corridors prior to activities to minimize the area of detrimental soil effects. Space tractor skid trails no less than 80 feet apart (edge to edge), except where converging on landings. This does not preclude the use of feller bunchers.
SR-4	In units harvested with ground-based equipment, pile slash in up to 50% of the unit area.
SR-5	Ensure suspension of one end of the log when utilizing skyline yarding systems.
SR-6	Construct drainage controls (waterbars, drain ditches) and apply available slash in log yarding corridors (cable or skyline) upon completion of harvest activities where bare mineral soil is exposed and water flow may be confined.
SR-7	Scarify and recontour excavated skid trails to restore slope hydrology and soil productivity.
SR-8	Scarify non-excavated skid trails and landings that are compacted or entrenched 3 inches or more. Scarify to a depth of 6 to 14 inches.

End of the World Project Additional Design Elements	
SR-9	All temporary roads will be scarified and recontoured (decommissioned) within 3 years after use. Reshape cut/fill slopes and crossings to natural contours. Apply available slash to the re-contour surface (slash is considered available where the equipment is able to reach it from the working area where the decommissioning is occurring).
SR-10	Retain and/or return green tops within units and allow green foliage to over-winter 1 year prior to burning in units 1A, 3, 4, 5, 6, 7, 9, 10, 11, 41, 59, 62, 63.
SR-12	Allow winter logging only during frozen conditions. Frozen conditions are defined as 4 inches of frozen ground or a barrier of unpacked snow greater than two feet in depth and packed snow one foot in depth.
SR-13	Keep slash piles (excavator piles) small (4-10' in height).
SR-14	Retain an average of 7 to 15 tons per acre of coarse woody debris (greater than 3 inches in diameter) following completion of activities.
Water Quality and Fish habitat	
WQ-2	Avoid direct ignition of fuels within RHCA's. Allow prescribed fires to back into these areas.
Access Management & Public Safety	
AM-1	Close existing gates (consistent with current motor vehicle restrictions) daily during non-operating hours.
AM-2	Consider alternative snowmobile routes and/or access and parking when winter log haul occurs on roads normally used as groomed snowmobile routes. These routes include RD 2000, 221, 243, 4600, 641, and 642. Coordinate with the contractors and local organization(s) responsible for trail grooming to minimize impacts on forest visitors.
AM-3	Prohibit log haul on Road FS221 on weekends (all day Saturday and Sunday) and on Federally recognized holidays from Midnight on the Friday before Memorial Day through Midnight on December 1st.
Wildlife	
WL-1	Spring burning shall occur in units F4 and F16 to address any concerns regarding wildlife species or habitat, including migratory birds, ungulate calving/fawning, and threatened endangered and sensitive species. Coordinate implementation of spring prescribed burn operations in units with a wildlife biologist.
WL-2	Retain trees with obvious cavities or large stick nests.
WL-4	Prohibit logging activities within units 40, 41, 74A, 74B, 75, 76, 77, 79, 81, 82, 83, 134, and 143 from May 15 through June 15 to avoid impacts on ungulate calving/fawning.
WL-6	Maintain a minimum 40-acre yearlong no-treatment buffer (no ground disturbing activities) around recently occupied goshawk nest trees in units 1A, 25, and 12A.
WL-7	No ground disturbing activities shall be allowed inside known occupied post-fledgling areas from April 15 to August 15.
Air Quality	
AQ-1	Limit burning to times when wind patterns would cause smoke plumes to drift away from local populated areas.

End of the World Project Additional Design Elements	
AQ-2	Coordinate with the North Idaho/Montana Airshed Group when prescribed burns are scheduled (minimum 24-hour notice) to ensure compliance with the Clean Air Act.
Fisheries	
FF-1	Allow instream activities in fish bearing streams between July 1 and August 15 to avoid sediment deposition on emerging steelhead or Chinook redds. These dates may be site-specifically adjusted through coordination with Central Idaho Level 1 team review and approval.
Recreation	
REC-1	Protect system trails 2009A, 2026, 325, 327, 328, 340, 386, 480, along with 480A-G, and 641 by requiring the following measures within 6 feet of centerline of the trail(s): directional felling, cutting stumps to 8 inches or less, no slash piles, and no slashing of the small diameter trees.
Noxious Weeds	
NW-1	Use Forest Service approved native plant species or non-native annual species to meet erosion control needs and other management objectives. Follow regional plant and seed transfer guidelines. Require contractors to use certified seed laboratories to test seed against the all state noxious weed list, and provide documentation of the seed inspection test to the contract administrator. Apply only certified weed-free seed and mulch.
NW-2	Visually inspect that rock used for surfacing is free of noxious weed seed.
NW-3	Remove all mud, soil, and plant parts from off road equipment before moving into project area to limit the spread of noxious weeds. Conduct cleaning off National Forest lands.
NW-4	Use rock from Forest Service approved sources.
Range	
RA-1	Specified existing non-system trails used to facilitate movement of livestock must be protected, or returned to same condition, not to exceed 46" width free of slash material post- timber harvest, fuel treatment, and/or other activities. Coordinate with Rangeland Management Specialist
RA-2	If any pasture fence is removed or breached to facilitate timber harvest, the fence shall be re-installed/repared in the same season
RA-3	All roads and/or skid trails, permanent or temporary, crossing allotment boundaries will have cattle passage barriers installed and maintained.
Visuals	
V-1	Within retention viewsheds within 150 feet of the viewing platform, (i.e., road, recreation sites, or administrative site); cut stumps to 8 inches or less in height.
V-2	Within retention viewsheds, harvest landing areas within 150 feet of the viewing platform (i.e., roads, recreation sites, or administrative sites); remove, bury, burn, chip or, lop to a height of 2 feet or less, any slash, root wads and other debris. If slash is buried, locate in previously disturbed areas where possible.

SHPO – Mitigation Requirements

To meet the National Historic Preservation Act, a 100' buffer will be applied to three specific sites as described in document "2020-448_FS NPCNF End of the World SHPO Signed" (located in the project record).

Monitoring

NMFS Biological Opinion – Monitoring and Terms & Conditions

The following monitoring and terms and conditions required in National Marine Fisheries Service will be applied to this project. The full biological opinion is in the project record.

Monitoring

Harvest

- Harvest areas will be monitored and inspected continuously throughout implementation of the Project.
- Replanted units will be surveyed to certify they are stocked within 5 years.

PACFISH RHCA

The PACFISH RHCA monitoring would be conducted annually by the NPCNF Fisheries Biologist in conjunction with BMP audits. Monitoring would be conducted on randomly selected treatment units throughout the NPCNF. Both implementation and effectiveness of treatments would be monitored. Specific treatments within the project area may be selected for monitoring.

Fish Salvage

Data on the species, condition, and size class of removed fish, will be collected onsite and reported to NMFS.

Road Work and Haul

It is standard practice (and proposed for this action) for the NPCNF Sales Administrators (SAs) to do the following active haul road monitoring when administering timber sales (Personal communication with NPCNF Fish Biologist November 4, 2019):

- Active haul roads are monitored and inspected two to three times a week during haul, before weather fronts, and up to 4 to 5 days a week in the wet shoulder seasons of spring and fall. Precursors to road problems are identified by SAs before damage to a road occurs.
- The SAs will document road conditions on paper and may include pictures. Contractors are notified, before damage to the road occurs, that road surfaces are softening. Contractors will self-regulate while SAs continue to monitor road conditions.
- If an erosion control issue is found, contractors are given 24 hours to fix the problem. For problems in key watersheds (i.e., anadromous fish watersheds), the problem will be fixed immediately.
- If a contractor does not comply, the issue is elevated to the timber sale purchaser.

Under wet conditions, timber purchasers, contractors, or a Sale Administrator (SA) would decide whether to cease haul to avoid road damage which would interrupt haul. When damage has occurred, because of the potential for interruptions in haul, purchasers tend to be timely with fixing identified problems. Only a couple of times in the past has the NPCNF had to use the contract to shut down haul due to noncompliance. Roads tend to deteriorate during the shoulder seasons under wet conditions; a period when SAs may increase inspections to four to five times per week.

Terms and Conditions

The terms and conditions described below are non-discretionary, and the NPCNF, COE, or any applicant must comply with them in order to implement the RPMs (50 CFR 402.14). The NPCNF, COE, or any applicant has a continuing duty to monitor the impacts of incidental take and must report the progress of the action and its impact on the species as specified in this ITS (50 CFR 402.14). If the entity to whom a term and condition is directed does not comply with the following terms and conditions, protective coverage for the proposed action would likely lapse.

1) To implement RPM 1, the NPCNF and COE (for those measures relevant to the CWA section 404 permit) shall ensure that:

- a) The proposed action, including all described conservation measures and BMPs, will be implemented as described in the BA and Proposed Federal Action section of this Opinion.
- b) Sediment sources on reconstructed roads and haul routes will be identified and eliminated or minimized prior to log haul activities for each of the planned timber sales. Correction of these sediment sources will be field verified through implementation monitoring prior to haul.

2) To implement RPM 2 (monitoring and reporting), the NPCNF and COE (as relevant to the CWA section 404 permit) shall ensure that:

- a) All steelhead handled, injured, or killed shall be identified, counted, and recorded with the date of occurrence. These data will be reported in the annual project report.
- b) If project take (capture and handling) of steelhead (total of 105 fish captured or handled, or 26 killed) from fish salvage and dewatering is exceeded at the five culvert replacement sites, work will be suspended and NMFS will be called to discuss reinitiation of consultation.
- c) Turbidity monitoring shall be conducted for the five culvert replacements. After a turbidity plume begins at the work site, visual turbidity shall be noted and recorded after 2 hours at 600 feet downstream. If a plume is visible, the downstream extent of the plume will also be recorded. Results of this monitoring will be reported in the project annual report. If a visible plume is visible at 600 feet downstream after 2 hours, NMFS will be called to discuss reinitiation of consultation.
- d) The NPCNF shall inspect all active haul road drainage systems for signs of damage or deterioration at least once weekly during active haul and after precipitation events intense enough to cause excessive rutting, damage, or abnormal deterioration of the road surface. Contractors will be notified, and repairs made according to the standard practices of the NPCNF and defined in the Proposed Action Section of this Opinion. Damage or deterioration of active haul roads, requiring mechanical repair, and draining to perennial streams, must be repaired no more than 6 days after the damage or deterioration is found and roads become drivable by the Sales Administrator's vehicle. The NPCNF will keep a log of identified

needed repairs and contractor compliance times. If there are no incidences of repair, this will be noted in the annual report. Log entries will be summarized, in table or text format, and submitted in the Project annual report.

- e) If the extent of take described above (for steelhead mortality, turbidity, harvest, or road damage or potential damage) is exceeded, the NPCNF shall cease take-causing activities and contact NMFS within 72 hours.
- f) Annual reports summarizing the results of all monitoring shall be submitted to NMFS by December 31. These annual reports shall be submitted every year until all proposed harvest and burning activities are complete. The annual project reports shall also include a statement on whether all the terms and conditions of this Opinion were successfully implemented.
- g) The post-project reports shall be submitted electronically to: nmfswcr.srbo@noaa.gov. Hard copy submittals may be sent to the following address:

National Marine Fisheries Service
800 Park Boulevard
Plaza IV, Suite 220
Boise, Idaho 83712-7743

- h) NOTICE: If a steelhead or salmon becomes sick, injured, or killed as a result of project-related activities, and if the fish would not benefit from rescue, the finder should leave the fish alone, make note of any circumstances likely causing the death or injury, location and number of fish involved, and take photographs, if possible. If the fish in question appears capable of recovering if rescued, photograph the fish (if possible), transport the fish to a suitable location, and record the information described above. Adult fish should generally not be disturbed unless circumstances arise where an adult fish is obviously injured or killed by proposed activities, or some unnatural cause. The finder must contact NMFS Law Enforcement at (206) 526-6133 as soon as possible. The finder may be asked to carry out instructions provided by Law Enforcement to collect specimens or take other measures to ensure that evidence intrinsic to the specimen is preserved.

Rationale for the Decision

When compared to the other alternatives, Alternative B will best meet the purpose and need as explained below.

I believe that Alternative B best meets the purpose and need of the project. I based my decision on how well the actions analyzed in the EA and EIS address the purpose and need of the project, how well the purpose and need is supported by scientific information, and conclusions of concerns that were raised during collaboration, coordination with the Nez Perce Tribe regarding treaty reserved resources, the scoping process, and the comment periods. I reviewed the Forest Plan, as amended, standards and guidelines for the project area and considered Nez Perce Tribe treaty rights, competing interests, and values of the public.

In reaching this conclusion, I considered how well the selected alternative achieves the desired future condition, meets the purpose and need for action, and addresses issues and concerns in the context of the other alternatives considered. Also, I considered all the environmental consequences of these actions, including the direct, indirect, and cumulative effects. Wildfires will continue to occur across

the West. In 2005, the Blackerby fire threatened private land and 80 homes within and adjacent to the End of the World project area. More recently, wildfires across the Nez Perce-Clearwater National Forests have threatened several local communities. During the 2015, 2018, 2021, and 2022 fire seasons, many people were evacuated from their homes, some even lost homes. With its proximity to Grangeville, the End of the World project area also receives heavy recreational public use. Successful implementation of this project would result in a more fire resistant, resilient forest in which fire behavior would be moderated. This would provide for public and firefighter safety and allowing safer egress/ingress along critical travel routes.

I reviewed the alternatives analyzed in detail (EA, FONSI, EIS, and specialist reports), and find that they are responsive to the issues and concerns, as well as the purpose and need for action. I also believe that the purpose and need for action is consistent with the goals and objectives of the Forest Plan, as amended.

I reviewed the alternatives analyzed but not considered in detail to ensure that an adequate range of alternatives was considered. I also considered Nez Perce Tribe and public comments. All concerns expressed during the scoping and comment processes have been appropriately analyzed and considered. Some concerns were addressed through alternative development, project design criteria, and resource protection measures. Other concerns, such as potential effects to resources were carried through the analysis (EA, EIS, and specialist reports).

Purpose and Need

Reducing Wildfire Risk and Increasing Forest Resilience

The End of the World project area is within rural wildland urban interface identified in the Idaho County Wildfire Protection Plan and was selected by the governor of Idaho as a Priority Landscape Treatment Area under the Farm Bill (USDA, Forest Service 2016). These are areas that have forest health and fuel hazard conditions outside of historic or desired conditions and are near private lands and structures. The End of the World project area falls entirely within the Nez Perce – Clearwater - Lower Salmon Wildfire Crisis Strategy Priority Landscape identified by Secretary Vilsack. The priority landscapes were selected based on the potential for wildfire to affect nearby communities, critical infrastructure, public water sources, and Tribal lands. High-Risk Firesheds in this priority landscape associated with the End of the World project include Asbestos Point and White Bird. This project would contribute towards forest resilience and reduce the likelihood of severity of wildfires in the priority landscape. To create more resilient ecosystems in the face of drought and climate change, we need to reestablish long-lived early seral tree species as the dominant overstory forest vegetation. This project proposes timber harvesting, prescribed burning, permanent and temporary road construction, watershed improvement activities, and a roadside fuels break, to reduce hazardous fuels, achieve desired age class and restore forest species, improve forest conditions, improve, and restore watershed health, and improve infrastructure (roads) in the priority landscape.

The National Cohesive Wildland Fire Management Strategy includes three goals (Resilient Landscapes, Fire Adapted Communities, and Safe, Effective, Risk-based Wildfire Response), all of which were considered in my decision. This decision addresses all three of these goals, as described throughout this rationale.

I heavily weighed my responsibility to consider the locations and the state and local government concerns in selecting these actions. I also weighed safety and risk management for fire suppression personnel, trying to create a landscape which will be more resilient and resistant to wildfire and

climate change. In addition, action is required to maintain forest health and promote resilient ecosystems by managing towards more characteristic landscape level vegetation patterns, structure, patch size, fuel loading and species composition. This will create the fire adapted and climate change resilient landscapes for the future.

The selected alternative will increase the margin of safety for firefighters and the public during suppression actions due to reduced fire intensity and lower fuel loading. This project will reintroduce fire to the landscape in controlled situations to restore it as an essential process of fire-dependent communities on over 24,000 acres.

The actions will:

- Reduce the risk to resource values because of reduction in accumulation of hazardous fuels that has the potential for high severity impacts. Modeling results indicate post treatment conditions would result in surface fire characteristics.
- Reduce wildfire risk to life and property. Lands adjacent to and near the project area, would be improved because post treatment conditions will allow for the use of safe efficient fire suppression management actions due to low flame lengths (less than 4 feet high), and surface fire type.

The Nez Perce-Clearwater is a forest that evolved with fire. It is not “if” wildfires burn in an area, but “when”. In recent years I have seen the efficacy of these treatments in many of the fires near this project area. Time and again, fires slow, stop, or change direction when they run into previously treated areas. Firefighters regularly use them as firelines and holding features. The photo below shows how insects and disease as well as the Rattlesnake fire of 2012 reached the edge of past treatment areas and stopped. This same effect occurred with the Johnson Bar, Wash, Slide and Baldy



Photo near Dixie Summit showing how the Rattlesnake Fire of 2012 moved around past treatment areas (USFS).

fires of 2014 and 2015, Hanover Fire in 2017, the Dixie Fire in 2021, and the Williams Creek fire in 2022. On the Motorway Complex, fires moved around past treatment areas without direct suppression actions. The Interface Fuels project was used to set backfires, thereby keeping the Woodrat Fire from burning the town of Syringa in 2015. The area that was treated in the Orogrande Community Protection project was instrumental in saving the community of Orogrande when the 2022 Williams Creek fire blew into and over the town. When the fire hit areas that had been harvested and prescribed

burned, it slowed, and the crown fire dropped to the ground. This moderated the fire behavior such that structure protection measures were successful; firefighters could stay in the area longer and return more quickly; and natural resource damage was less severe. When the fire moved through the town and hit the untreated stands on the other side, the forest was again severely burnt. With the predicted impacts of climate change and past fire exclusion creating more intense fire behavior, reducing fuels in this area is even more important.

Historically, wildfire maintained open-grown ponderosa stands within portions of this area. Wildfire exclusion has allowed encroachment of shade-tolerant species into the understory, increasing the risk of stand-replacing fires by creation of ladder fuels, and increased accumulations of ground fuel.

Treatments would reduce timber stand density and reduce the encroachment of shade-tolerant tree species, therefore decreasing the risk of insect or disease outbreak and reducing the fire risk in the End of the World project area.

The decision will make progress toward the historic range of variability with the indicators of forest cover type and forest structure within treated stands. This will shift forest tree species composition away from shade-tolerant species. Because the large, desirable species trees will be retained, there will only be a slight decrease in the large tree class. The treatments will help restore early seral species that were more prevalent in the area and are designed to begin restoring the open-grown forest structure.

The selected alternative will treat fuels within the Nez Perce – Clearwater - Lower Salmon Wildfire Crisis Strategy Priority Landscape. The project area is also a wildland urban interface area identified by Idaho County. The alternative will reduce fuels directly adjacent to private property within the project area. Treatments will also create a fuel break along 16 miles of Forest Service Road 221, providing safer egress and ingress for evacuations and emergency response personnel. Changing



Photo of Orogrande Community Protection Project showing an area that has been thinned. This type of fuels treatment helped change the Williams Creek wildfire movement from a crown fire to a surface fire.

the structure of the forested stands is critical to reducing risk and exposure of firefighters and the public. The selected alternative will change fire behavior, moving it from the crowns of the trees to the ground where it can be more safely managed.

None of the alternatives affects the probability of wildfire occurrence, only the potential impacts to the Forest and the private property in the project area. Vegetation treatments and prescribed fire will modify fuels. Reduced fuel loading will decrease the probability of a high intensity wildfire. Actions will lower the amount of land in the project area that are high fire hazard. Fires occurring in these treatment units will be less intense and the ability to control them will increase. Reintroduction of fire to the landscape in controlled situations is an essential process of fire-dependent communities. The selected alternative provides for the greatest margin of safety compared to the other action alternatives during fire suppression operations.

Improving Forest, Water Quality, and Aquatic Habitats

This project provides the opportunity to treat the landscape holistically. It addresses upland forest health as well as improving function of the aquatic systems. The selected alternative will improve watershed health in the long term. Watershed function will improve by reducing sediment delivery to streams from road and trails, reducing the volume of water intercepted and redirecting from natural flow paths towards stream channels, increasing watershed area that has productive vegetation, and increasing aquatic organism passage, hardening 5 stream crossings for cattle /ATVs, and decommissioning 28 miles of roads.

Associated road activities, such as culvert replacement, road decommissioning and road maintenance will change the existing conditions that may be causing impacts to water quality and fish habitat. Although there is some new specified road construction, it involves a re-route of less than 1 mile of permanent road on or near a ridgetop with no stream crossings, so that 0.6 miles of riparian adjacent roads can be decommissioned.

Restoration actions including dry meadow/range maintenance, invasive plant treatments, fencing (if needed), riparian planting, minor amounts of strategic tree felling to deter cattle, and trail restoration activities will also provide benefits to fish and wildlife species. As a result of the selected alternative there will be a positive upward trend in Jungle Creek (White Bird side) and Cold Springs Creek prescription watersheds (Aquatics Specialist Report pages 100 -101). The actions will lead to improved conditions in important fish habitat over the long-term resulting from the associated watershed restoration activities.

Consideration of Issues and Concerns

I have engaged tribal and local governments, collaboratives, and stakeholder citizens regarding this project. The proposal was listed in the Schedule of Proposed Actions (SOPA) on October 1, 2017. The proposal was provided to the tribe, public, and other agencies for scoping/comments on February 16, 2018. A legal notice and request for public scoping comments appeared in the Lewiston Tribune on February 16, 2018. The proposal was presented to the Idaho County Commissioners, Grangeville City Council, and Clearwater Basin Collaborative. Two public meetings and one field trip were held to explain the proposal and receive feedback. In addition, this proposal was presented to the Nez Perce Tribal staff members for comment and discussion on 10/18/2017, 2/15/2018, 5/16/2018, and 10/31/2018. The previous Forest Supervisor phoned the Nez Perce Tribe Chairman April 26, 2024, prior to the release of the Draft EIS. The Salmon River District Ranger emailed tribal staff 05/15/2024, 06/04/2024, 06/17/2024 and provided an updated briefing paper and map to Nez Perce

tribal staff on June 18, 2024. Alternative B was created in direct response to collaboration and public comments that requested alternative treatments near private properties, less harvest, fewer temporary roads, and less potential sediment production.

The Forest has been discussing the project with the Nez Perce Tribe since its inception and the alternatives have been shaped and refined through those discussions. The EA and continued through the EIS documentation:

- Clarified that when on the ground layout of timber sales and prescribed burning begins (post NEPA planning), field personnel will ground truth, field verify and apply all design elements on each acre of land in the treatment areas. Design elements will be implemented and monitored through contract administration.”.
- Agreed that all temporary roads will be scarified and recontoured (decommissioned) within 3 years after use. This includes reshaping cut/fill slopes and crossings to natural contours and Application of available slash to the re-contoured surface.

The process we used and detailed responses to the EA and EIS are in the Final EIS and the project record. I crafted my decision based on those interactions and predicted impacts to the landscapes and our communities. The selected alternative will provide adequate habitat for wildlife species, including green trees, snags, large trees, and old-growth habitat important to the Nez Perce Tribe and many others.

I have met with county commissioners and emergency management personnel and heard their concerns about fuels and forested vegetation conditions on the Forest. I have talked to my firefighters to understand how this project will reduce the risks that they take on to respond to wildfires. I have discussed wildlife habitat needs for forage and improved vegetation with the Nez Perce Tribe and state and federal wildlife agencies. I have merged the environmental concerns with the purpose and need for action, including tribal, local, and state government comments regarding the importance of fuels reduction and forest resilience.

Effects to Water Quality and Fish Habitat

Direct sediment effects to steelhead and their critical habitat would occur during culvert replacements in Fish and Jungle Creeks (5 culverts). The project determination for steelhead and their critical habitat is therefore “*may affect, likely to adversely affect*” the fish and their critical habitat. The sediment effects would be extremely short term (one day per site) and would have long term benefits by providing access to historic habitats. Additionally, removing fish from the work sites prior to culvert removal would minimize the potential direct effects to fish. Based on this, I have determined that there is no significant effect to steelhead or their critical habitat.

Effects to Old-growth and Wildlife Habitat

Some commenters raised concerns about the retention of large trees and old-growth habitats. Some commenters raised concerns over new stand data, identification of stands that met the Forest Plan criteria for old-growth and potential effects to wildlife and the new old-growth analysis presented in the Draft EIS. I listened to these concerns and responded to these comments in the Final EIS (Appendix B).

The decision will promote the long-term sustainability of the project area’s forest communities and old-growth habitats, benefiting the wildlife species that use them. Although there will be habitat modifications within the project areas, the long-term benefits of management actions outweigh the risks of no action. No action would almost certainly result in destruction of these stands across a

much larger landscape such as we saw recently on the forest during the fires of 2008, 2012, 2015, 2017, 2021 and 2022.

The decision will:

- Retain the large diameter trees while reducing tree densities, ladder fuels, and competition for moisture and sunlight to promote vertical structure, species composition, and habitat diversity, live snag recruitment, and future down woody debris.
- Retain the largest, best quality trees, as well as snags and down logs, to the maximum extent possible to avoid adverse effects to stands with old-growth characteristics.
- Retain old-growth habitats, mature/over-mature recruitment stands, and riparian buffers to continue to provide important wildlife habitat.
- Remove shade-tolerant conifers and reduce ladder fuels to lower the risk of stand replacing wildfires.
- Reduce stand densities to increase residual tree vigor and increase insect and disease resistance and resilience.

Forest Plan Old Growth Habitats – Appendix N

With the implementation of Alternative B, the Forest Plan Appendix N standards for old-growth will be met in all five Old-growth Analysis Areas that encompass the project area. The most recent Forest Inventory and Analysis (FIA) data used by Reyes and Morgan (2022) indicates the Nez Perce National Forest is above the Forest Plan minimum standard of 10 percent old-growth forest wide using the Forest Plan old-growth criteria. The analysis was conducted in 2022 and given lack of disturbance since that time, this FIA data is considered accurate. This indicates there is sufficient old-growth forest habitats available to support the local and regional populations of wildlife species that use these areas for part of their lifecycle.

I have determined that actions are necessary in Forest Plan old growth, including 794 acres of thinning and 386 acres of prescribed burning. The intent of the treatment in these areas is to improve and maintain current old growth stand conditions. Vegetation treatment (thinning) and prescribed burning would reduce tree densities, ladder fuels, and competition for moisture and sunlight, yet retain habitat for old growth and snag dependent species. If old growth stands are identified through refined project layout, any harvest will retain the characteristics that qualify them as Nez Perce Forest Plan (1989) old-growth and will exhibit increased health and vigor.

Strengthening the Nation's Forests, Communities and Local Economies - EO - 14072

Some commenters were concerned the proposed management is inconsistent with Executive Order 14072. However, the executive order does not establish new policy that prohibits management in old growth. Rather, it states that "...we will seek opportunities, consistent with the Infrastructure Investment & Jobs Act (IIJA), to conserve our mature and old-growth forests on Federal lands and restore the health and vibrancy of our Nation's forests by reducing the threat of catastrophic wildfires". This project is aligned with that intent by including management actions to increase landscape resiliency and reduce uncharacteristic fire in the old-growth habitats.

The most recent Forest Inventory and Analysis (FIA) data, Reyes and Morgan (2022) calculated existing old growth using Forest Plan Appendix N definitions. The data shows approximately 14.7 percent of the Nez Perce National Forest meets the Forest Plan Appendix N definition of old growth (minimum of 15 trees per acre greater than 21 inches dbh, and vertical structure) (90 percent

confidence interval: 12.4 – 17.0 percent). The Nez Perce National Forest is above the Forest Plan minimum standard of 10 percent old growth forest wide.

The 1987 Nez Perce Forest Plan currently guides activities on the southern end of the Nez Perce-Clearwater Forests where this project is located. The Nez Perce portion of the Forests contains over 2.2 million acres. Vegetation management activities in the End of the World project will not degrade or impair the composition, structure, or ecological processes in a manner that prevents the long-term persistence of old-growth forest conditions or carbon storage, based on Forest Plan old-growth definitions, within the Forest Plan area.

- Approximately 1.4 million acres are designated wilderness (926,188 acres), roadless (503,162 acres), or Wild and Scenic rivers corridors (35,061 acres). These areas are managed to allow for primarily natural forms of disturbance which permits long-term persistence of old-growth forest conditions and carbon storage on approximately two-thirds (66%) of the Forest.
- Of the remaining 1,070,414 acres of the Forest, 911,669 acres are suitable for timber production; however, this includes riparian areas, so the actual available/suitable acreage is less. Additionally, the Forest Plan, Appendix N, requires that a minimum of 10 percent old-growth (5% existing and 5% replacement) is maintained on the suitable timber lands (equating to a total of ~91,000 acres forestwide) in each prescription watershed (Old-growth Analysis Areas -OGAAs). A replacement old-growth stand refers to immature timber stands that will meet old-growth criteria within 100 years.
- The End of the World proposed treatment area is approximately 26,279 acres in size (< 3% of the suitable acres).
- There are approximately 5,342 acres of Forest Plan old growth within the five OGAAAs.
- Thinning and prescribed burning are proposed on 1,180 acres of Forest Plan old growth, resulting in **no change** to the old-growth acreage in the Nez Perce Forest Plan area.
- Under Alternative B, there will be **no regeneration harvest** of Forest Plan old growth, **resulting in no change** to the old-growth acreage in the Nez Perce Forest Plan area.

Vegetation management in old-growth forest conditions in the End of the World Project area are for the purpose of proactive stewardship, to promote the composition, structure, pattern, and ecological processes necessary for old growth forest conditions to be resilient and adaptable to stressors, future environments, and climate change.

Vegetation removal (thinning) and prescribed burning are proposed reduce tree densities, ladder fuels, and competition for moisture and sunlight, yet retain habitat for old growth and snag dependent species. The intent of the treatment in these areas is to improve and maintain current old growth stand conditions. The treatments of these dense, over-stocked stands would help retain and maintain habitat for many wildlife species that are dependent on the long-term sustainability of these old growth habitats and will improve them for future use by increasing health, resistance and resilience to insect, disease, and climate change.

Effects to Climate

The management actions assessed carbon stocks alongside other ecosystem benefits. The anticipated impacts to carbon after the project has been fully implemented, over the lifetime of the project, include: a gain in carbon not only from increased tree growth, but also from reduction in wildfire severity. Carbon losses over short time frames may occur resulting from the following actions: cutting timber in the treatment units, however, a portion of this carbon would remain stored for a period in wood products (Depro et al. 2008, U.S. Environmental Protection Agency 2010), reducing some of

the carbon emitted through decomposition. Additionally, over 90% of the vegetation treatments thin the forest, leaving behind fully stocked stands in the project area. Long-term carbon gains are expected due to the remaining fully stocked forest stands that will experience decreased competition and increased growth. Compared to the no action alternative, project actions are predicted to: decrease stand densities, increase forest health, and reduce the potential for severe wildfire due to heavy fuel loading and canopy closure. The project will produce short-term carbon emissions, however the Forest would sequester the amount of carbon emitted by the harvesting alternatives almost immediately. Long-term carbon impacts are likely to be unaffected or decreasing.

Based on the simplified assumption that all harvests occur simultaneously and using the estimated rate of net forest carbon uptake from the carbon dashboard (May 17, 2024), the Nez Perce-Clearwater NF would sequester the amount of carbon emitted by the Alternative B in approximately 13 months (FEIS, Table 3). Proposed harvests remove less than 0% percent of aboveground Nez Perce-Clearwater NF carbon, and less than 0% percent of total Nez Perce-Clearwater NF carbon.

The Nez Perce Clearwater has consistently functioned as a carbon source and sink since 1990 and is anticipated to continue functioning as such. It is anticipated forest will remain forested on the Nez Perce Clearwater and not be converted to other land uses. Fluctuation in carbon stores and accumulation into the near future (i.e., 20 to 50 years) would continue to occur, consistent with the natural variation that would be expected in an ecosystem influenced mostly by natural disturbance regimes and ecosystem processes. Impacts of fire and insect/disease on forest cover and potential loss of carbon is greater than that of harvest activity. The continued trend of increasing carbon stocks from 1990 to 2023 over the 33-year period suggests that the Nez Perce-Clearwater Forests will remain a modest carbon sink into the future.

Findings Required by Laws and Regulations

To the best of my knowledge, my decision and this alternative is consistent with all laws, regulations, and agency policy relevant to the End of the World project. The following discussion is not an all-inclusive listing, but is intended to provide information on areas raised as issues or comments by the public, other agencies and the Nez Perce Tribe.

Delegation of Authority

Consistent with Forest Service Manual 1230, I have been delegated authority as Forest Supervisor of the Nez Perce-Clearwater National Forests, effective November 17, 2024. I am responsible to the Region One Regional Forester for management, development and administration of the Nez Perce-Clearwater National Forests.

Nez Perce Forest Plan

The decision to select Alternative B, as described in this document, is consistent with the intent of the Nez Perce National Forest Land and Resource Management Plan's long-term goals and objectives listed in the FEIS. The project was designed in conformance with forest plan standards and incorporates appropriate Forest Plan guidelines. This decision is consistent with the Forest Plan.

Permits Required

Activities including working instream and in wetlands may require: a Joint Clean Water Act 404 Permit/Stream Alteration Permit from the U.S. Army Corps of Engineers and the Idaho Department of Water Resources and a Clean Water Act 401 certification from the Idaho Department of Environmental Quality. Prior to initiating work required permits will be obtained.

Prime Farmland, Rangeland and Forest Land

The Selected alternative is in keeping with the Secretary of Agriculture memorandum, 1827 for prime land. The project area does contain any prime farmlands or rangelands. “Prime” forest land does not apply to lands within the National Forest system. National Forest lands will be managed with sensitivity to the effects on adjacent lands.

Wilderness and Roadless Areas

Congress, the State of Idaho and the Forest Service have identified Wilderness, Inventoried Roadless Areas, and Idaho Roadless Areas. None of the Selected Alternative’s activities would occur within an Inventoried or Idaho Roadless Areas, or Wilderness.

Other Laws, Regulations and Policies

This decision meets the following laws, regulations, and policies:

- Clean Water Act (CWA) (33 U.S.C. 1251 et seq.),
- Clean Air Act
- Endangered Species Act (ESA) (16 U.S.C. 1531-1544)
- Nez Perce National Forest Plan (USFS, 1987)
- National Historic Preservation Act (NHPA) (16 U.S.C. 470)
- Executive Order 12898, Federal Actions to Address Environmental Justice in Minority and Low-Income Populations
- Executive Orders 11988 and 11990, Floodplain Management and protection of Wetlands
- Executive Order 13112, Invasive Species
- Executive Order 13990, Protecting Public Health and the Environment and Restoring Science to Tackle the Climate Crisis
- Executive Order 14008, Tackling the Climate Crisis at Home and Abroad
- Executive Order 14072, Strengthening the Nation’s Forests, Communities, and Local Economies
- Bipartisan Infrastructure Law section 40807
- Tribal Treaty Rights
- Northern Rockies Lynx Management Direction
- Travel Management Rule 2005
- Idaho Forest Practices Act
- Idaho Stream Channel Protection Act

Alternatives Considered

In addition to the selected alternative, I considered two other alternatives in detail (No Action and Proposed Action). Three other alternatives (proposed by others) were considered; however, they were not carried forward in detail in the analysis. Other alternatives considered are discussed below. Based

on the definition in 36 CFR 220.3, Alternative B is the environmentally preferred alternative. A more detailed comparison of these alternatives can be found in the Final EA and Final EIS (located in the project record).

No Action

Under the No Action alternative, current management plans would continue to guide management of the project area. The results would be the current condition as it continues to change over time. This would result in the continued deterioration of some of the existing stands as well as the potential for wider impacts from spread of insects and disease. In addition, road densities would remain unchanged in the project area and watershed improvement work would not be accomplished. This alternative would continue to elevate the risk of uncharacteristic wildfire and would not address fuel accumulations in the wildland urban interface, nor would it respond to the priority landscapes identified by the Governor of Idaho. It would not further implementation of the National Cohesive Strategy.

The No Action alternative provided the baseline for the comparison of the environmental effects of the action alternatives to the existing condition.

Proposed Action

The Proposed Action meets the purpose and need of the project. However, it does not respond to collaboration and public comments that requested alternative treatments near private properties, less harvest, fewer temporary roads, and less potential sediment production.

Alternatives Considered but Eliminated from Detailed Study

Three other alternatives (proposed by others) were considered; however, they were not carried forward in detail in the analysis. These include:

Use a Combination of Dispersed and Aggregated Retention Strategies to Limit Size of Openings to Less than 40 Acres

This was eliminated from detailed study because clearcutting with reserve trees is planned on these acres to start new stands. Deferring treatment or limiting the size of these harvest areas would contribute to accumulations of down fuel and create public safety hazards when these trees fall across roads. Dispersed inclusions of healthy trees of other species would be retained for wildlife use and future soil recruitment. The remaining mixed-conifer units planned for regeneration harvest contain varying amounts of root disease, stem decays, and fir engraver beetle in the grand fir, and dwarf mistletoe in the overstory western larch. Due to advanced age, these stands have decreased in vigor and health, making them more susceptible to future insect and disease infestations. Shelterwood harvest is planned in the majority of these areas. The stands are not homogenous, and contain areas of younger, healthier trees. These younger patches will be retained, as well as inclusions of healthy, desirable species such as ponderosa pine, western larch, Engelmann spruce, and Douglas-fir, resulting in a mosaic of varying densities. If no action is taken to reduce the extent of insect and disease infestations, resilience to insects and diseases will not be increased, and the purpose and need will not be met.

Eliminate Construction of Temporary Roads

This suggestion was eliminated from detailed study because it did not provide meaningful alternatives for treated acreages or enhance watershed restoration. Instead, we created an additional alternative (Alternative B) that focuses on reducing harvest in prescription watersheds that displayed higher (although within Forest Plan Guidelines) Equivalent Clearcut Area (ECA) or NEZSED numbers to further reduce potential sediment. This resulted in an additional alternative with more meaningful treatment acreages, increased watershed restoration, and a reduction of approximately ½ mile of proposed temporary roads.

Develop Detailed Assessment of all Habitat Types, Crosswalk to Fire Groups, and Develop Project Goals and Prescriptions More Consistent with Each Stand's Ecological Setting

This was eliminated from detailed study as a standalone alternative because the project analysis details the fire ecology of the project area and analyzes how the proposed treatments will help achieve goals and objectives within the project area.

Public Involvement and Consultation

As part of the public involvement process, the agency consulted the following individuals, Federal, State, tribal, and local agencies during the development of this project:

- Idaho County Commissioners – 6/20/2017
- 304 Letters sent out to local community inviting them to public meeting and field trip – 9/21/2017
- Clearwater Basin Collaborative (Working Group) – 9/27/2017
- Grangeville City Council – 10/2/2017
- Clearwater Basin Collaborative (Landscape Health Committee) – 10/4/2017
- Community Meeting (17 attendees) – 10/4/2017
- Field Trip (10 attendees) – 10/10/2017
- Idaho County Commissioners – 10/17/2017, 4/17/2018
- Nez Perce Tribe Quarterly Meeting – 10/18/2017, 2/15/2018, 5/16/2018, 10/31/2018
- Nez Perce Tribe Staff to Staff Meeting – 06/14/2018
- Forest Supervisor call to Nez Perce Tribe Chairman – April 26, 2024
- District Ranger emails, to tribal staff – 05/15/2024, June 4, 17, 2024
- District Ranger briefing paper and map to Nez Perce tribal staff – June 18, 2024
- Email to Nez Perce Tribal Staff information on EIS – 05/15/2024
- Letter from Idaho Pathfinders – December 2017
- Letter from Richard and Lois Geary (local landowners) – 1/29/2018
- Approximately 300 Opportunity to Comment Letters sent out – February 15, 2018
- Clearwater Basin Collaborative (Landscape Health Committee) – 2/22/2018
- Public Meeting during Scoping – 3/7/2018
- Nez Perce Tribe Staff to Staff Meeting – June 14, 2018
- Forty (40) comments letters were received during scoping
- Bill Elliot – University of Idaho
- US Fish and Wildlife Service (USFWS)
- NOAA Fisheries
- Idaho State Historic Preservation Office (SHPO)
- Forest Supervisor call to Nez Perce Tribe Chairman – April 26, 2024
- District Ranger emails, to tribal staff – 05/15/2024, June 4, 17, 2024
- District Ranger briefing paper and map to Nez Perce tribal staff – June 18, 2024
- NOI published in the *Federal Register* April 26, 2024

- GovDelivery email sent to 213 subscribers announcing NOI April 26, 2024
- Press release, social media posting about NOI April 26, 2024
- NOA for DEIS published in the *Federal Register* July 12, 2024
- GovDelivery email sent to 213 subscribers announcing DEIS comment period July 12, 2024
- Press release, social media posting announcing DEIS comment period July 12, 2024

Issues

The interdisciplinary team (IDT) used the comments from the Nez Perce Tribe and the public, State, Federal, and other agencies to identify the scope of issues to be addressed and to determine the relevant issues related to the effects of proposed action (see EA). Alternative B was expressly created based on collaboration efforts and feedback that we received. Concern was expressed for increased sediment that might reach the South Fork Clearwater River. Prescription watersheds that drain into the South Fork Clearwater River were re-examined and unit adjustments have been made. We also reviewed prescription watersheds that drain into the Salmon River and adjusted some of those treatment areas as well. The reduction in treatment acres led to the elimination of approximately ½ mile of temporary road construction. Concern was also expressed by adjacent landowners in the Cove Road area for prescribed burning near their properties. Alternative B drops the prescribed burning in this area and replaces it with more localized areas of mechanical treatment (hand thinning, pile, and jackpot burning).

The IDT used the comments from the public, state, federal, and other agencies to identify the scope of issues to be addresses and to determine the relevant issues related to the proposed action. Details of the public involvement efforts for this project are included in the Final EA and the Final EIS.

Listed Species Consultation

The Nez Perce-Clearwater National Forests has completed Endangered Species Act section 7 consultation with the U.S. Fish and Wildlife Service and National Marine Fisheries Service on the selected alternative for the End of the World project.

Fish: The Nez Perce-Clearwater National Forests has completed Endangered Species Act section 7 consultation with the U.S. Fish and Wildlife Service and National Marine Fisheries Service on the selected alternative for the End of the World project. The forest has provided the regulatory agencies with final biological assessment regarding the effects of the project to Snake River steelhead and their designated critical habitats; and essential fish habitat (EFH); and Bull Trout and their designated critical habitat. The Forest has received a Biological Opinion from National Marine Fisheries Service and a Letter of Concurrence from the U.S. Fish and Wildlife Service (Project Record).

Grizzly Bear: In December of 2020, the U.S. Fish and Wildlife Service updated procedures for mapping where grizzly bears may be present (USDI, FWS 2020). As a result, the End of the World Project now overlaps with an area identified as where grizzly bears “may be present”. The description of grizzly bears as “may be present” for project planning purposes does not mean those locations are considered “occupied range” (areas in which grizzly bears have established home ranges and continuously reside). Nor does a “may be present” designation automatically equate to effects determinations of either “may affect, not likely to adversely affect” or “likely to adversely affect”. When utilizing the grizzly bear mapping methodology, considerations may include but are not limited to: last known locations of verified bears; sex and age class of bears, which may inform potential home range size; whether the bear is transitory or localized to a specific area; the suitability of the

habitat within the action area; and whether HUCs adjacent to those within the action area should also be considered as areas where grizzly bears “may be present”. Given these considerations, although grizzly bear may show as “may be present” through the mapping methodology, the Action Agencies may find that the proposed action will have no effect to grizzly bears.

Nez Perce-Clearwater National Forest requested informal consultation with U.S. Fish and Wildlife Service and met on December 18, 2020, to review how the Forest considered grizzly bears for the Hungry Ridge project, and the Forest’s determination of “No Effect”, considering new grizzly bear location information and U.S. Fish and Wildlife Service updates of where grizzly bears may be present. While the U.S. FWS does not provide Letters of Concurrence with “No Effect” determinations, the U.S. FWS acknowledged the “No Effect” determination of the Forest based on these factors during that informal consultation meeting. Notes of the meeting are included in the project record.

Wolverine: Project activities would occur in female dispersal habitat and would not affect maternal or primary habitat. As a result, the effects of the project may impact dispersing individuals. The potential impacts of reproductions are expected to be minimal. Mechanical treatment activities and associated vehicle traffic, use of the existing road system, construction, and use of new system road (< 1 mile), reconstruction of < 1 mi. of road, and 15 miles of temporary road may result in disturbance to wolverine that may be in the vicinity in the short-term. This would be in addition to a possible slight increase in the potential for vehicle-caused mortality, which would remain highly unlikely on forest roads where vehicle speeds are slow due to topography and road conditions. While project activities have the potential to cause some disturbance to dispersing wolverines, these effects would be localized and limited to areas where treatments take place likely reducing potential impacts to wolverine. While the distribution of potential prey may temporarily change, these movements are expected to be relatively short in distance however, it is unlikely that available prey resources will change appreciably at the scale of a wolverine home range and, because wolverine operate at a large scale, they would be able to adjust to temporary changes in prey distribution. Improvements in the quality and quantity of forage resources is likely to improve the health of big game herds, which is expected to aid in maintaining a sustainable prey base for wolverines. Alternative B doesn’t propose any increases in winter recreation. While there is potential for snowmobile use in newly created openings, they would not impact maternal or primary habitats and, thereby, would not affect wolverine denning or reproduction. If current modelled projections are realized, climate change is likely to exacerbate the extent, depth, and duration of the available snowpack in the western United States (Pierce et al. 2008). The percent change in future snowpack depends on elevation in relationship to wolverine habitat use (i.e., denning, zone above denning, or zone below denning) (USDI Fish and Wildlife Service 2023). The lowest elevation areas (below 1640 ft (~500m)) are predicted to have the greatest decreases (i.e., 50 to 100% loss in snow depth the Northern Rocky domain) whereas elevations above historical den locations are predicted to have smaller decreases (<10%). All models, including the coolest and wettest, indicate a continuing reduction in spring snow, a pattern that has been ongoing since at least the 1950s (Mote et al. 2005). However, even with these modeled potential decreases in snow depth, it is still uncertain at what point it would impact wolverine persistence at the population level and there is no overlap of persistent snow with modeled maternal or primary habitat in the analysis area. As a result, The End of the World Project May Affect, but is Not Likely to Adversely Affect North American Wolverine.

Whitebark Pine: The End of the World Project area does not contain whitebark pine habitat. There will be no effect to whitebark pine.

Tribal Consultation

Tribal Government consultation and coordination is described in the Issues and Concerns section above. That section summarizes the interactions with tribal staff and government as well as the changes to the project that were made based on those interactions. The Forest discussed the project from before scoping of the original EA through the EIS comment period. The Tribe did not comment on the Draft EIS, has not requested formal consultation, and has not expressed any further concerns with the project.

Scientific Information

I am confident that the analysis of this project was conducted using reliable data sources. My conclusion is based on a review of the record that shows my staff conducted a thorough review of relevant scientific information, considered responsible opposing views, and acknowledged incomplete or unavailable information, scientific uncertainty, and risk. Please refer to the project record for the specialist reports specific discussions of the science and methods used for analysis, the response to public comments on the proposed action, and the literature reviewed.

Implementation

Implementation of the decision may occur after the Court's injunction has been lifted.

Changes may be needed during implementation to meet on-site resource management and apply design measures. The acres, miles and locations of actions described in this decision are approximate and will be refined based on implementation. In general, approximately 30 percent of the acres analyzed for timber harvest are dropped to meet project design features during sale layout. Minor adjustments to unit boundaries, or road locations, may be needed during implementation for resource protection, to improve harvest system efficiency, and to better meet the intent of my decision. These minor changes will not present sufficient potential impacts to require any specific documentation or action to comply with applicable laws. In determining whether and what kind of further NEPA action may be required to address changes, I will consider the criteria at Forest Service Handbook 1909.15, Section 18.

Administrative Review or Objection Opportunities

The Secretary of Agriculture, Tom Vilsack, has determined that the Forest Service may carry out Authorized Emergency Actions under section 40807 of the Infrastructure Investment and Jobs Act (PL 117-58) on National Forest System lands in 250 identified High Risk Firesheds. Emergency actions are taken to achieve relief from threats to public health and safety, critical infrastructure, and/or to mitigate threats to natural resources. Forests projects proposed under an emergency authority must be approved by the Secretary.

The Forest requested and received approval to implement the End of the World Project as an Emergency Action Determination project. The project lies within portions of two High-Risk Firesheds. The reason for requesting this emergency authority is to mitigate the harm to life, property, or important natural or cultural resources on NFS or adjacent land; harvest (commercial or non-commercial) to control insects or disease and remove hazardous fuels.

An Emergency Action Determination was approved on May 16, 2024; therefore, this project is not subject to the pre-decisional objection review process (36CFR 218 - objections).

Contact Persons and Project Information

Project record is on file electronically. The Final Record of Decision, Final SEIS and other project documents are available on the project webpage at: <https://www.fs.usda.gov/project/?project=52541>.

For additional information concerning the specific activities authorized with this decision, you may contact:

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Attachment 1 – Decision Map

